HEADNOTE

"1. In general, there is no reason to limit the authorised representatives of a party to a certain number or even to UPC representatives and their internal assistants, who must also be named (connection to UPC_CFI_471/2023 (LD Mannheim), Order of 3 July 2024, ORD_33986/2024 Aylo Freesites v. DISH). However, it must be clear who is obliged to maintain confidentiality and who can be held responsible and legally liable in the event of a breach of the confidentiality order.

2. In principle, it is the responsibility of each party to identify the natural persons to be granted access to the confidential information. Once a party has done so and has identified the natural persons to whom it wishes to grant access to the confidential information, it is for the other party to state the reasons why, in its opinion, such access should not be granted in the particular case."

COURT
Local Division in Düsseldorf

PROCEEDINGS
Infringement action

PATENT
EP 2 697 391 B1

METHOD AND PRODUCT FOR LOCALISED OR SPATIAL DETECTION OF NUCLEIC ACID IN A TISSUE SAMPLE

KEYWORDS
Confidentiality order | confidentiality club | summary proceedings | proceedings on the merits | access of representatives

SUMMARY
The Local Division in Düsseldorf ruled on an infringement action. The patent at issue relates to a method and product for localised or spatial detection of nucleic acid in a tissue sample. According to the headnotes of the decision, parties may authorise multiple representatives to access confidential information. These representatives need not be limited to UPC-registered counsel or their internal staff. However, the court must clearly identify who bears confidentiality obligations. This means that legal liability for any breach must be attributable to specific individuals. Furthermore, each party bears the responsibility for designating which natural persons should access confidential information. Once a party has made such designations, the opposing party may object only by providing specific reasons. This allocation of responsibility ensures both transparency and accountability in confidential disclosure.